Standard Operating Procedure (SOP)

Country Specific Requirements United States PH

Document Number: IQMS-14847
SSC-PTC-SOP-US-005

Version: 5.0

Effective Date:	2026-01-01
QMS Area:	Quality
QMS Chapter:	4.9 Product Safety, Product Quality and Pharmacovigilance

Applicability

Bayer Level:	PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☐ CH

GBS Location
☐ Global Business Services Barcelona
☒ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☐ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: United States

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

Version:	5.0
Document Author(s):	Warner Villalobos Benavides (GFFAE)
Document Approver(s):	CQH: Dana O' Donnell (MJYCD) PTC Team Lead/SME: Roberto Chaves Aguilar (EQVIE)
Training Role(s):	GBS_CR_PTC_CLUSTER 9
Relevant Process and Activities:	PTC

Table of contents

1 Scope and Framework 5
1.1 Scope 5
1.2 Framework 5
2 Abbreviations 5
3 Purpose & Set-Up 5
3.1 Purpose 5
3.2 General guidance 6
3.3 Roles and responsibilities 6
4 Specific requirements regarding PTC handling 8
4.1 Country Specific Requirements listed by different topics 8
4.2 Contact list 8
4.3 Escalation Rules 8
4.4 Pharmacovigilance cases 9
4.5 Product Samples 9
4.6 Statement letter 10
4.7 RQU Contact list 10
4.8 List of Local Opportunities Products 10
4.9 Data Privacy Requirements 11
4.10 Gathering additional information (including obtaining translation) 11
4.11 Reimbursement and Replacement 11
4.12 Exceptions and special cases 11
4.13 Others 12
5 Internal References 15
6 External References 15
History of changes 16
Annex 1 18

1 Scope and Framework

1.1 Scope

Bayer Country Quality Units (CQUs) are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Services in process steps like management of the complaint entry, complaint categorization, timely escalation of cases involving local authorities and potential falsifications or counterfeits, assignment of investigations to the Responsible Quality Unit (RQU), and final verification, including complaint case closure.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
BT	Biotechnological
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
FDA	Food and Drug Administration
GBS	Global Business Service
HCP	Health Care Professional
IA	Immediate Action
MDR	Medical Device Report
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
UI	Usability Issue

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for United States of America are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules. Note that this SOP only applies to PH and BT products. Eylea and Xarelto (except Xarelto counterfeits) cases will not be processed by the GBS. A separate Country Specific SOP is available for CH products.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs the initial intake of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information - Forwards the case to the respective RQU for further assessment - Checks if a complaint sample is needed and notifies the CQU that the complaint sample needs to be obtained - Reviews the case for plausibility and closes the complaint case in complaint database - Supports the process for reimbursement management is not required. - Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing - GBS is responsible for performing the KPI evaluation monthly and sharing the results with CQH/CQU. -
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Supports the GBS in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested. - Sends out the Response Letters to the complainants as requested and agreed with the GBS - Contacts local CMO on request of GBS as RQU to get investigation reports from the respective CMO - Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated - Ensures that the current list of distributed products is updated and contains all products.

Quality International Global Business Partner	- Is responsible oversight of GBS - Is responsible for regular KPI evaluation of complaint activities at the GBS
Responsible Quality Unit (RQU)	- Receives the complaint cases for products produced at Bayer Facilities under their oversight - Assesses initial PTC report and assigns the initial complaint Risk Category - Evaluate is sample is required. - When escalation is required, ensures the complaint information is appropriately forwarded to relevant functions, (i.e. CQH, CQU, PQSC GKs). - Responsible for performance of the investigation into the quality issue reported in the complaint - Documents the results of the investigation into the complaint database - Defines, Implements and tracks to completion any corrective or preventative actions (CAPAs) resulting from the investigation - Issues the final complaint assessment and classification

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference

4.1.1 General Information

Bayer US LLC offices are located at 36 Columbia Road, Morristown, NJ 07962.

Bayer Business Services Costa Rica, SRL (GBS) offices are located at America Free Zone, Heredia, Costa Rica.

4.2 Contact list

Quality International Global Business Partner – Gloria Gaviria, *gloria.gaviria@bayer.com*

CQU – product.complaint@bayer.com

PV-PQS – pv-pqs@bayer.com

Drug Safety – *drugsafety.gpv.us@bayer.com*, pvptc@bayer.com

Remark:
Current name and e-mail address of CQH and CQU deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

4.3 Escalation Rules

GBS

CQU should be notified within 24 hours of the awareness date about any complaint case referring to at least one of the following situations:

- Suspected falsification and Counterfeit incidents
- Any cases involving Health Authorities (including threats to informs the FDA)
- Litigation cases – except Essure product
- Label misprint errors
- Foreign particles if confirmed via photo at the time of case entry
- Cases considered to be potentially life-threatening – serious risk to health
- Confirmed cases with final risk category High or Medium

The escalation should result in the creation of an immediate action task in the complaint database through the communication protocol section with the following information:

- Reason for escalation
- Current due date: Same as the current due date of the complaint
- If case is received by email, attach the email containing the case information

Remark:
The current names and e-mail addresses of the CQH and the CQU deputy are found on the QINT SharePoint:
https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

Description	Assigned Roles & Document Reference
4.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address. *drugsafety.gpv.us@bayer.com* and pvptc@bayer.com, unless the incoming information is received through any PV e-mail address or there is evidence that Pharmacovigilance has already been notified of the case. This notification should be sent at latest the next working date upon receipt. **Remark** PTC+AE cases received from Pharmacovigilance that do not require investigation, do not have to be entered into any complaint database. If a case is not entered into the complaint database, an e-mail should be sent to Pharmacovigilance with appropriate rationale (except IUS LODE cases). For MIIDAS cases, “MIIDAS AE Number” in the complaint database can be filled with MIIDAS “Related AE” number.	GBS
4.5 Product Samples Unless there are product specific requirements, product samples are retrieved whenever the sample is declared to be available, and the sample is needed for investigation and cannot be replaced by pictures. The following best practices provide the guidance to identify the cases whereas the sample is needed for the investigation or not. • US03REGS-BP000131. Betaject Lite / BetaConnect Auto Injectors/ MyBetaApp Technical Complaint Guidance Document. • US03REGS-BP000133. Women's Healthcare – Blistered Products Technical Complaint Guidance. Document. • US03REGS-BP000132. Radiological (Imaging) Products Technical Complaint Guidance Document. • US03REGS-BP000106. Transdermal Products (3M Drug Delivery Systems) Technical Complaint Guidance Document. • US03REGS-BP000111. Solutions, Suspensions and Shampoos Technical Complaint Guidance Document. • US03REGS-BP000107. Biologics Products Technical Complaint Guidance Document. • US03REGS-BP000103. Caplets, Tablets and Effervescents Technical Complaint Guidance Document. • IQMS-22834. Essure Technical Complaints Guidance Document If the product complaint sample is available to be returned, the following steps must be followed to initiate the sample retrieval process with the CQU team: 1. GBS will send a notification via communication to CQU, informing them about the sample retrieval required. 2. GBS will create an Immediate Action (AI) task, which will be assigned to a CQU PH member. 3. The immediate action task must include the following details:	GBS/CQU

Description	Assigned Roles & Document Reference

- Title: Sample Retrieval Request
- Description: Request and retrieve sample for product “XXXX”
- The due date for the IA task must not exceed 20 calendar days from the date of creation.

4. CQU Task Closure: The CQU team will close the IA task once the sample has been shipped to the manufacturing site or has been discarded.

   Note: Sample retrieval process cannot be executed from complaints reported in Puerto Rico.

4.6 Statement letter — GBS

Response Letter before closing:

All response letters are managed by the CQU.

GBS requests a written reply letter for the complainant by the CQU (Pharma), by creating and assigning an IA to the CQU to indicate that a response letter is required once the investigation has been completed by the RQU. The CQU will prepare the response letter, attach it to the complaint database, and close the case. Once finalized, the letter is sent to the complainant by the CQU.

GBS asks for response letters in the following instances:

- Upon request by the complainant, unless the complainant is part of an ongoing legal case. Cases investigated for Alliance Partners unless not required based on the current Quality Agreement (QAA). For Estradiol cases, it is not necessary to send a notification to the CQU in regards of the response letter.
- Suspected counterfeits reported by agencies such as U.S. Homeland Security or the FDA.
- For counterfeit cases, when the Final Risk Classification has been documented by the investigation site to be either “Medium” or “high”.
- All cases received from Regulatory Agencies, except those received from the following FDA division: Medwatch / DQRS program.

4.7 RQU Contact list — GBS

A table with all available products in the country, needed for entry into the complaint database, is available on SharePoint: *COMOP Q-Documents - Documents - GBS Costa Rica - All Documents*.

List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint:

PH: *PH RQU responsible list_HJ.xlsx*

4.8 List of Local Opportunities Products

All Local Opportunities Products are registered in the RQU Contact lists (4.7).

Description	Assigned Roles & Document Reference
4.9 Data Privacy Requirements For all electronic information provided, GBS must follow and apply the 'User Guide for Redaction of Personal Data in Complaint Attachments' to ensure compliance with data privacy requirements. *Complaints - IQMS Complaint Management Trainings - All Documents*	
4.10 Gathering additional information (including obtaining translation) Contact with the complainant to gather missing information (written or verbal) regarding the complaint is done by the PTC Officer responsible for the case in local language (guidance is found in IQMS-42960 best practice). Verbal communication with the complainant can be done by the CQU upon request of GBS. In cases when the CQU receives a complaint firstly by a phone, then Product Complaint Form (see Annex 1) is used to document received information. The CQU sends this form to GBS via e-mail as soon as possible, because timeline starts when phone complaint is received by the CQU. **Remark** Case follow-up and sample retrievals will not be required for legal cases, when the complainant requests no return calls, or if no contact information is available. If a complaint first came via phone communication (e.g. call centers), this contact with consumer is considered to be the first attempt to gather information. If, during any of the follow-up attempts it becomes known that no sample is available, this shall be documented into the complaint database, and no further attempts are required.	GBS CQU
4.11 Reimbursement and Replacement N.A	GBS
4.12 Exceptions and special cases **Product specifics** Eylea and Xarelto cases will not be processed by the GBS (except Xarelto counterfeits). GBS routes back Xarelto cases to the CQU, Eylea complaints must route back to through the contact *product.complaints@regeneron.com*. **Expired Products** – All expired product cases will be entered as processable complaints into the complaint database. Investigations will be required for technical complaints with Initial Risk high where the product was used by the patient or HCP and the expiration date has not been exceeded by more than one calendar year. No investigation is required for technical complaints with Initial Risk low where the product was used by the patient or HCP when the product has expired, or for Initial Risk high where the expiration date has exceeded more than one calendar year. **Social Media**	GBS

Description	Assigned Roles & Document Reference

A case will be opened for posts to social media when the case has been forwarded by Pharmacovigilance or other Bayer corporate entity. Potential complaint cases are considered those reported to Bayer by an identifiable reporter such as the complainant or responsible health care provider, and contain adequate information (e.g., product, product configuration, lot number, complaint reason) to initiate an investigation.

Information not requiring a complaint database entry

- When the underlying cause of the report (Drug Product type only) is known to be a Usability / Preference (handling/customer satisfaction) Issue. This includes incorrect preparation or use based on product knowledge and past complaint investigation history. Usability Issues will be entered into the complaint database for all medical device and combination products.
- Adverse event reports that are not directly associated with potential product quality issues.
- Cases where a potential PTC was reported but was resolved with guidance/assistance during initial receipt will not be entered into the complaint database. For example, this includes cases where the consumer reported missing directions, but the directions were found with guidance from the contact center.
- When the received information is insufficient to relate a complaint with a particular Manufacturing Site.

Remark

All Essure cases must be entered into the complaint database.

4.13 Others

Label misprint error

Label misprint error complaints shall be prioritized upon receipt. Those complaints received should be acknowledge by the CQU prior to entry into the complaint database, For PH/BT products CQU verifies correct artwork by a request from either the RQU, US Quality, or Packaging Services. If the misprint is confirmed, Quality Management will be notified, and the complaint will be entered by GBS after CQU’s notification as an initial risk category medium and high.

Specific Vendor requirements

- Specific Vendor requirements should be followed if needed.
- Refer to IQMS-82425 “Alliance Partners Case Processing” to follow specific requirements on alliance partners.

Complaint Database case processing

Data entry

- Awareness Date: When insufficient information has been received to initiate an investigation, and follow-up is necessary, the date received will be the date that the

Description	Assigned Roles & Document Reference

additional information was obtained. The case will include information, including dates, relating to all attempts made to follow-up.

- Awareness date refers to the date that GBS is aware of the case. In the event of a weekend or holiday, the clock for data entry starts on the next business day after the weekend or holiday.

- Initial Receipt Date: When a complaint has been received from an alliance partner, the date they received the complaint at their call center is entered into the Initial Receipt Date field in the complaint database.

- Current due date can be set to 60 days long for complaints with initial risk classification Low if responsible for investigation is a CMO, or if sample needs to be retrieved, even if the manufacturing site isn't a CMO.

- The PQC Case number can be entered in the MIIDAS Number (PTC)field in the complaint database if the case was received via MIIDAS.

- If, at the receipt of the case or during any of the follow-up attempts, it becomes known that no sample is available, this shall be documented in the complaint database, and no further follow up attempts are required.

- IQMS-44781 – "Essure Case Processing" best practice has instructions on how to enter Essure complaints in the system.

Closure

- Detail instructions to proceed with the final approval can be found in the following Best Practice: IQMS-73304, "Case Closure Guidance for Pharma and Biotech" and IQMS-45843, "Case Closure Guidance - Essure AE only cases"

- Review of the source documentation and complaint database records is performed for completeness. The source documentation and the complaint database case will be compared for consistency. If further clarification or additional information is needed, the complaint record is reassigned back to the responsible site and/or individual.

- When the complaint file is at the approval step it is reviewed and approved by a second individual who did not enter the case into the complaint database. The person responsible for approval evaluates the case for the following criteria:
  - Accuracy and completeness
  - Agreement with the assessment

  Signing of the case provides final approval.

Follow up cases

Description	Assigned Roles & Document Reference

An IQMS follow-up complaint is created when the contents of the case, including original investigation and original medical assessment if applicable, are accurate, but need to be expanded after additional information has been received, this includes but is not limited to, when:

- A sample was received
- A lot number was obtained
- An adverse event was reported

For detailed procedures on creating or superseding a complaint record, refer to IQMS User Guide: “Complaints-Initiator Role Tasks”.

Once the follow up complaint is created, new information is entered into the case by the initiator, who must clearly specify the nature of the new information within the “Communication Protocol” section to guide the assigned investigator to it. The follow up complaint must also be linked to the original case in the “Related Workflows” section. Once the follow-up complaint is created the status of the original complaints needs to be updated to “Superseded”, ensuing that only the most recent version of the complaint is included in the system metrics and reporting.

The awareness date should not be changed for these cases. The due date is defined as follows based on the complaint process type:

- Standard Complaint Process – The case must be initiated by GBS within 5 calendar days, followed by an investigation period of 20 days and an approval/closure period of 5 days.

- Non Standard Complaint Process - The case must be initiated by GBS within 5 calendar days, followed by an investigation period of 50 days and an approval/closure period of 5 days.

  Note: The complaint must not exceed 90 calendar days from the awareness date.

IQMS Amendments

A closed IQMS complaint can be re-opened if information contained in the file data, original investigation, or medical assessment has been found incorrect. This includes but is not limited to:

- Incorrect batch number
- Incorrect complaint reason
- Incorrect assessment results
- Request by RQU of PQS for corrections.

Description	Assigned Roles & Document Reference
Complaints are amended only for corrections or to add pertinent information related to the complaint after its closure. Reopening must be requested to and approved by QA. In IQMS, *Complaints - IQMS Complaint Management Trainings - All Documents*	
Naming files Technical Complaints Electronic File Guideline, IQMS-94417, provides accepted file formats and file naming conventions.	

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective Date *(yyyy-mm-dd)*
1	New document	2021-02-01
2	# Section 2, Added with BT abbreviation. # Section 3 Minor updates. # Section 4. Correction on USA address. # Section 4.1.3 Update on how to send an escalation received through email. # Section 4.1.4 Update on pharmacovigilance process flow. # Section 4.1.6 Update on when to select “yes” in “response required” field in Dev@Com if the case comes from a HA. # Section 4.1.12 Minor updates. 3 Section 4.1.13 Minor updates on this section (misprint, specific vendor requirement on Alliance Partners, Dev@Com case processing and Follow Up cases). Updated Naming files reference document. # Update doc label to include PTC and to include PH in the title.	2021-04-05
3	# Section 3.1 Update on this section to allow the SSC to process Essure cases. #Seccion 4.1.2 Added Drug Safety email address #Secction 4.1.3 Deleted IRMS requirement and reworded Label error escalation rule. #Section 4.1.4 Added a timeline to notify PV of received AEs. Deleted the step of notifying PV for certain products when they are already notified. Added exceptions in the remark. #Section 4.1.5 Minor update. Added Essure Best Practice. #Section 4.1.6 Deleted IRMS reference. Minor updates (rewording) of the section. Added line stating that for Estradiol cases don’t need a notification email to be sent to the CQU. #Section 4.1.10 Added reference to a template to report cases received by phone. Added reference to a Best Practice. Added remaks of the case follow-up process. #Section 4.1.12 Reworded social media statement. Reworded "Information not requiring a Dev@Com entry" section and deleted the IRMS reference. Added a remark. Deleted non-PTC section. #Section 4.1.13 Reworded "Label misprint error" section. Deleted IRMS case processing section. Minor changes (rewording) in "Dev@Com case processing" sections, Deleted IRMS references. "Deleted Medical" Devices section. Added Essure Best Practices. # Section 5 added Best Practice references.	2022-06-13
4	# SSC or SSCDN references changed to GBS. #Section 4.1.2 Deleted Quality Region US & Canada contact reference #Section 4.1.12 Deleted Usability Issues (UI) instructions #Section 4.1.12 Reworded Expired Product Instructions	2023-10-09

5	# Section 2 Added abbreviation for immediate action. # Section 3.3 Added GBS responsibility for performing KPIs evaluation and quality international business partner and responsible quality unit. # Section 4.2 Added Quality International Global Business Partner contact # Section 4.3 Updated process of escalation rules within the complaint database. # Section 4.5 Added instructions to initiate the sample retrieval process through the complaint database system. # Section 4.9 Updated data privacy requirements by implementing the “User Guide for Redaction of Personal Data.” Section 4.13 Updated follow up case process and added IQMS Amendments process. # Changed word “Dev@com” for “Complaint Database”.	See Cover page

Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Dana O'Donnell (dana.odonnell@bayer.com) Approver - Content 11-Dec-2025 19:25:34 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	Roberto Chaves (roberto.chaves@bayer.com) Approver 17-Dec-2025 03:12:39 GMT+0000